

HOUSE No. 4851

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, December 29, 2025.

The committee on Children, Families and Persons with Disabilities, to whom were referred the petition (accompanied by bill, House, No. 208) of Simon Cataldo, Steven Owens and Sean Garballey for legislation to provide for diaper changing stations in public buildings and accommodations, and the petition (accompanied by bill, House, No. 256) of John J. Lawn, Jr., Sean Garballey and others for legislation to provide for diaper changing accommodations in public buildings, reports recommending that the accompanying bill (House, No. 4851) ought to pass.

For the committee,

JAY D. LIVINGSTONE.

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The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act requiring universal changing stations in public buildings.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 93 of chapter 143 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by adding the following paragraph after the fifth paragraph:-
3 Any State owned and maintained public building containing a public toilet room that is newly
4 constructed, reconstructed or remodeled on or after January 1, 2028 shall install and maintain at
5 least 1 universal changing station. The bathroom shall be conspicuously marked as containing a
6 public changing table. The changing table shall be capable of supporting a minimum of 350
7 pounds and providing a changing surface of 70 inches minimum in length and 30 inches
8 minimum in width and open so that the top of the changing table is at least twenty (20) to
9 twenty-five (25) inches off the floor.

10 SECTION 2. Section 93 of said chapter 143 is hereby further amended by inserting the
11 following definitions after the sixth paragraph:-

“Universal changing station,” an adult sized changing table designed to hold at least 350lbs that is located within an enclosed restroom facility that is for use by persons of any age who require assistance with diapering and is accessible by persons of any sex.

"State owned and maintained", is a building with a public bathroom belonging to, funded by, and controlled by the Commonwealth of Massachusetts, its political subdivisions, and its public authorities and other public instrumentalities.

SECTION 3. Section 93 of chapter 143 of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by adding the following after the definitions: The board shall adopt regulations regarding the requirement that any State-owned and maintained public building that is newly constructed, reconstructed or remodeled on or after January 1, 2028 to install and maintain at least 1 universal changing station.

(b) The regulations adopted by the Board shall include, but should not be limited to:

(1) a requirement that the entrance to each universal changing station has conspicuous signage indicating the location of the station;

(2) a requirement that if a public building has a central directory, said central directory must indicate the location of the universal changing station;

(3) a requirement for signage indicating the weight capacity and instructions for operation of the changing station within the room;

(4) the process for determining exemptions and further details of the exemptions listed in Section 4(c);

(5) a requirement that all universal changing stations shall:

33 (A) provide safety features of sidebar rails and safety belts;

34 (B) be located inside a private restroom or in a private stall, enclosed area or privacy
35 screen within a multi-stall restroom;

36 (C) provide adequate space for assistance for end and side clearance; and

37 (D) comply with all requirements of the Federal Americans with Disabilities Act;

38 (6) any other issues regarding implementation that the board deems appropriate.

39 (c) The board shall grant an exemption from the requirements of this section if it
40 determines:

41 (1) the installation would not be feasible.

42 (2) the installation would create a condition that does not comply with the Americans
43 with Disabilities Act standards for access for persons with disabilities.

44 (3) the installation would destroy the historic significance of a historic property;

45 (4) the building is not frequented by the public; or

46 (5) the cost of the proposed reconstruction or remodeling without the inclusion of a
47 changing table does not exceed \$10,000